TEXAS EVICTION · REFERENCE

Writs of Possession

Why winning the unit back is only half the outcome — and how to recover the money the judgment leaves on the table

A writ of possession restores your unit. It does not restore your money. The unpaid rent, the damage beyond the deposit, and the fees the lease entitles you to remain owed after the tenant is removed — a separate debt that most operators simply write off. This reference walks the Texas eviction sequence at a high level, explains exactly what the writ does and does not do for your ledger, and shows how the money balance is actually recovered.

Executive summary

- A writ of possession returns the property; the monetary balance is a separate recovery that survives the eviction.
- The Texas path runs notice to vacate → forcible-detainer suit → judgment → appeal window → writ → constable removal. Timelines vary by county — confirm locally.
- Money owed under a written lease is generally subject to a four-year statute of limitations in Texas — a finite window to pursue it.
- The balance is recoverable through skip tracing, compliant contact, credit reporting (Equifax + Experian + RentBureau) and, where warranted, judgment enforcement.

1. The Texas eviction sequence, and what the writ does not do

Eviction in Texas is a defined legal process. It begins with a written notice to vacate giving the tenant the required period to leave before suit can be filed; proceeds to a forcible-detainer suit in the Justice of the Peace court for the precinct; is heard by the court, which issues a judgment for possession if the landlord prevails; allows the tenant a short window to appeal before the judgment can be enforced; results in a writ of possession authorizing removal if there is no appeal; and ends with a constable posting notice and, after the required period, overseeing the physical removal and return of the unit. Exact timelines and requirements vary by county and court, so confirm them with local counsel.

What that entire process accomplishes is one thing: it gets your property back. It does not collect the money the tenant owes. A judgment in the eviction may establish amounts owed, but a judgment is a piece of paper until it is enforced — and by then the former tenant is gone, often without leaving an address. Possession and the money are two separate outcomes: the writ delivers the first, and the second — unpaid rent, damage above the deposit, broken-lease and holdover fees, utility chargebacks, and any awarded costs — is a distinct, collectible debt that begins where the eviction ends. Removal does not extinguish it.

2. The clock, and how the money is recovered

The right to sue on the money does not last forever. In Texas, claims on a written contract — which a signed lease is — are generally subject to a four-year statute of limitations, typically running from the default or last payment, and a partial payment or written acknowledgment can in some circumstances restart or extend that window. The practical lesson is the same as with every receivable: the sooner the balance is placed and worked, the more can be recovered while both the legal window and the tenant's trail are still open.

Once possession is restored, recovering the balance is a collections problem, not a court problem, and it follows the post-eviction playbook. Skip tracing locates the removed tenant, who rarely leaves a forwarding address, with 70–80% location success. Compliant contact and negotiation proceed under the FDCPA and Regulation F — a validation notice, call-frequency limits, and a 30-day dispute window. Credit reporting to Equifax and Experian, plus Experian RentBureau, puts the balance on the screening report the tenant's next landlord will pull. And where a monetary judgment exists and the balance justifies it, judgment enforcement — garnishment, liens, bank-account levies, enforceable for a decade or more and often renewable — is pursued in coordination with the owner. Many operators treat the writ as the end of the matter and absorb the money loss; on pure contingency that is leaving recovery on the table for no reason, because there is no upfront cost to placing, skip tracing and reporting are standard, and even partial recovery on a balance you would otherwise write off is found money.

What to do the day the writ executes

The most valuable moment for the money side of an eviction is the one most often missed: the day possession is restored. That is when the file is most complete and the trail is warmest. Finalize the itemized ledger through the move-out date, capture the unit's condition with dated photographs, reconcile the deposit, and gather the lease and any judgment paperwork — then place the balance. Every week that package sits is a week the former tenant settles somewhere new and the contact data on file goes further out of date.

Placed promptly, the balance has real avenues to recovery even against a tenant who has vanished. Skip tracing re-establishes contact; a professional third-party demand and, where qualifying, credit and RentBureau reporting apply pressure a former landlord cannot; and where a monetary judgment supports it, enforcement tools — garnishment, liens and bank-account levies, enforceable for a decade or more and renewable — convert the judgment from a piece of paper into collected funds. None of it carries an upfront cost, which is what makes writing the balance off the genuinely expensive option.

What is still collectible after removal

Removal settles possession; it settles nothing about the money. On a documented ledger, the balance that survives the writ typically includes unpaid rent through the lease-end or move-out date, property damage in excess of the security deposit, broken-lease and holdover fees where the lease provides for them, unpaid utilities billed back to the resident, and — where awarded or contractually provided — court costs and legal fees. These are not soft claims; they are contractual obligations the tenant agreed to, and they remain enforceable within the statute of limitations.

What turns them from a theoretical claim into collected dollars is the same discipline that governs any recovery: a complete file, prompt placement while the trail is warm, and a professional process behind the demand. The eviction proved the tenant defaulted; the documentation proves what they owe; and the recovery process — skip tracing, compliant contact, credit and RentBureau reporting, and judgment enforcement where warranted — is what actually brings the money back.

How Southwest Recovery recovers what the writ leaves behind

After the writ, you finalize the itemized ledger and any judgment documentation and place the balance — with the lease and move-out records — through our secure portal. We skip-trace, contact compliantly, report where qualifying, and enforce where warranted, all on pure contingency with no upfront cost. The eviction gave you the unit back; we go after the money it left behind.

The eviction was the hard part; recovering the money is the part most owners skip — and on contingency, skipping it is the only version that guarantees you collect nothing. Place the balance, and the writ stops being where the loss ends and becomes where the recovery begins.

About Southwest Recovery Services

Southwest Recovery Services is a property-management and multifamily recovery specialist working post-eviction and unpaid-rent balances on pure contingency since 2004 — with a strong Texas footprint of six offices (Addison HQ, Austin, Dallas, Houston, Midland, San Antonio) among twelve across seven states, and recovery reach nationwide. Over two decades we have placed more than $975M in receivables, recovered over $76M for clients, and worked 800,000+ accounts. We furnish qualifying accounts to Equifax and Experian, plus Experian RentBureau — the rental-specific value-add most landlords cannot report themselves — at no additional charge, and we work every account on pure contingency ($0 upfront) under a documented, FDCPA/Reg F-compliant process as an ACA International member.

Recover the money the writ leaves behind

Send us your post-eviction balances — with the ledger and any judgment — and we'll pursue the money the eviction didn't, on contingency.

Call (866) 551-4684 · sdietz@swrecovery.com · swrecovery.com